

23SMCV04237 23SMCV04237

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-05

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This is an application to continue or trail this trial. It is brought by the defense. The theory is that lead trial counsel is not available. What apparently occurred is that on July 29, 2026, the Riverside County Superior Court unexpectedly continued a case that had been set for August 7, 2026 to August 14, 2026. Because this was entered on the Riverside Superior Court's own motion, counsel had no opportunity to be heard. That matter is apparently subject to a preference under CCP section 36 due to the fact that the plaintiff there is 95 and apparently a delay could be prejudicial. Lead counsel for defendant here is also lead counsel for defendant there. Counsel states that no other attorney in the firm will be able to try this case in the amount of time remaining. The conflict was not manufactured by anyone; it just happened.

At the CMC in this case, the court warned all parties that there would be no trial continuances absent unforeseen and unforeseeable cause—and that is reflected in the Minute Order of that date. However, this seems to qualify. The continuance of the Riverside case was not made at counsel's request or even on notice. The court has no reason to believe that counsel could have foreseen the Riverside Court's sua sponte order. Normally, the court would ask counsel here to tell the court in Riverside about the instant trial. But that case has a statutory preference. Given that preference, the Riverside Court has limited options.

The court believes that even though the bar to continue a trial is a high one, it has been met here. The court is therefore inclined to GRANT the motion. The court will therefore VACATE the FSC and

trial dates and set a new TSC for 9/14/26 at 8:30 am. The court is aware that plaintiff is not responsible for the continuance request. Therefore, the court will do what it can to restore the matter to the trial calendar as speedily as possible and will not put the case at the back of the line. Also, because this is a conflict of dates, the court is not extending the discovery cut off dates. They remain tied to the original trial date of August 17, 2024.